'Software as a Service' Terms and Conditions

Understanding the Basic Terms and Conditions for Software as a Service (SaaS)

Version 1.2

These Software as a Service Terms and Conditions ("SaaS Terms") apply to the agreement entered into between the Customer (sometimes/for the Quote) and the Service Provider (as identified on the Quote) ("Master Agreement") for the provision of Software as a Service ("SaaS") and ancillary services (collectively, the "Services") to certain applications and/or software (the "Software") and/or hardware (the "Equipment") and user documentation (the "Documentation") (collectively, the "Product") as specified in the applicable quote/order form or subscription form (the "Quote") and/or Service Description (the "Service Description") (collectively, the "Software" or "Software").

1. Subscription Grant and Right to Use

1.1. Subscription Grant:

Subject to all limitations and restrictions contained herein and the Quote, Service Provider grants Customer a non-exclusive, non-transferable ("SaaS") nonexclusive, and nontransferable right to access and operate the related SaaS from all applications (web and/or mobile/smartphone) and/or hardware (collectively, the "Equipment") and/or software (the "Software") and/or Equipment (collectively, the "Product") as specified in the applicable Quote/order form or Service Description ("Service Provider's proprietary software that is specifically subscribed to Customer pursuant to a Quote

1.2. Use:

Customer will have a limited right to Use the/application solely for its internal business purposes, to perform the functions described in the Documentation. Customer shall not allow any website, that is not fully owned by Customer, to access the Software, or any portion thereof, or any Software or any portion thereof, to be embedded in or linked across to the Software. Customer shall not allow any website, that is not fully owned by Customer, to frame, syndicate, distribute, replicate, or copy any portion of Customer's web site that provides direct access to the Software, or any portion thereof, or any Software or any portion thereof. Customer shall not, and Customer shall not permit any subsidiaries, affiliated companies, or third parties to access the Software.

1.3. Subscription Type:

Unless otherwise specifically provided in the Quote, the type of license granted is a Node Based Subscription. A "Node" means the number of computers, servers, or other devices that may access the Software. Customer shall maintain a current list of Nodes, which shall be made available to Service Provider upon request. The configuration that is identified by a unique device ID (the "**Node**"), the maximum number of which is specified in the Quote, shall be the only computer, server, or other device that may access the Software. Each Node is a certified number of Nodes for purposes of Customer's Product Use and/or the scope of its subscription to the Product. Subscriptions; or "Site Subscriptions" means that the Application subscribed to pursuant to the Quote may be Used by Customer at any Customer location, or any location at which Customer is doing business, in the aggregate, up to the number of Nodes specified in the Quote. Customer's Use of the Application subscribed to pursuant to the Quote may not Use more than the number of servers indicated in the Quote. The scope of any subscription other than a Site Subscription shall be as specified in the Quote. Customer shall not Use the Application in excess of the scope of its subscription. Use of any of the subscriptions denied above be continued to have a concluded use of the Software.

1.4 General Restrictions:

Customer shall not and shall not permit any Affiliate, User or other third party to: (a) copy, create a derivative work or reverse engineer, reverse assemble, disassemble, or decompile the Software or any part thereof or otherwise attempt to discover any source code or modify the Software in any manner or form unless expressly allowed in writing by Service Provider; (b) modify, translate, or alter the Software in any manner or form unless expressly allowed in writing by Service Provider; (c) use the Software to create a competitive product; (d) use the Software in a manner or for purposes not specifically authorized by this Agreement; (e) use the Software in a manner that is in violation of any third party rights; (f) use the Software in a manner that is in violation of any third party rights; (g) use the Software in a manner that is in violation of this Agreement or the Documentation; and (h) permit control of Service Provider's proprietary software by any competitor of Service Provider. Customer shall not: (a) sell, lease, license, sublicense, or otherwise distribute the Software to any third party; (b) offer the Software on a time-sharing, outsourcing, service bureau, rental, or similar basis for the benefit of a third party; or (c) permit any other person or entity to access or use the Software.

1.5 Additional Restrictions:

In no event will Customer dissemination, decompile, or reverse engineer the Application or Confidential Information in violation of any applicable law, or Customer shall not: (a) use the Software for any purpose other than its intended purpose; (b) remove the Application from a machine - readable form into a human -readable form; (c) remove, obscure, or alter any notice of intellectual property or proprietary right appearing on or contained within the Software or Documentation; (d) use the Software to knowingly transmit source code or any proprietary information of any kind; (e) knowingly transmit or upload any material to or through the Software that contains viruses, trojan horses, or any other harmful or deleterious programs; (f) use the Software in any manner or for any purpose that violates any law, statute, ordinance, or regulation (including the laws and regulations of the United States and its agencies, data protection or privacy of persons, Software export laws or regulations, or anti-spam laws or regulations); (g) knowingly disseminate, decompiling, or decompiling. To the extent any such activity may be permitted pursuant to applicable law, Customer shall not: (a) reverse engineer, decompile, disassemble, or otherwise attempt to discover the source code of the Software.

1.6 Authorized Users:

Unless otherwise specifically provided in the Quote, "**Authorized Users**" will only consist of: (i) employees of Customer who are authorized by Service Provider to access the Software and/or Equipment, and (ii) third parties, including Service Providers' Affiliates and/or Customer's agents and/or sub-lessees, that are specifically authorized by Service Provider. Customer may use the Software only at Customer's place of business or in the presence of Customer personnel. Customer shall not permit any other third party to access the Software or any portion thereof. Without Service Provider's prior written consent, Customer shall not permit any parent, subsidiaries, affiliated entities, or third parties to access the Software.

1.7 Customer License Grant:

Customer grants to Service Provider a non-exclusive, royalty-free license to access, use, reproduce, modify, distribute, and display the Customer Data to the extent reasonable or necessary for Service Provider to perform its contractual obligations under the Agreement.

2. Hosting

2.1 Service Availability:

Service Provider will use reasonable efforts to achieve Service Provider's availability goals described in the Service Level Agreement ("SLA") found at https://www.accelotech.com/sla-level-agreement.

2.2 Support Services:

Upon payment of the relevant fees on the applicable Quote in advance, Customer may receive certain support services for the Application as specified in the applicable quote and subject to any additional terms stated therein.

2.3.(I) Services Removed:

If Service Provider's performance of its obligations fails to conform to the warranty set forth in Section 3.2 above, Customer's exclusive remedy and Service Provider's sole liability shall be limited to the repair or replacement of the Software, Equipment, or Documentation. Service Provider will have 30 days in which to correct the non-conformance at no additional charge, and 30 if Service Provider has not corrected the non-conformance within the 30 days in which to correct the non-conformance, Customer may terminate the Quote for Service Provider's defective Software.

4. Ownership

4.1 Reservation of Rights:

By signing the Quote, Customer irrevocably acknowledges that, subject to the rights granted herein, Customer has no ownership rights in the Software, Equipment, or Documentation. Service Provider shall own all Intellectual Property in Customer. Service Provider shall own all right, title, and interest in and to the Software and Service Provider Updates, subject to any limitations associated with intellectual property rights of third parties. Service Provider reserves all rights not specifically granted herein.

4.2 Marks and Publicity:

Service Provider and Customer trademarks, trade names, service marks, and logos, whether or not registered ("**Marks**"), are the sole and exclusive property of the respective owning party, which owns all right, title and interest in and to the Marks, including all goodwill associated therewith. Neither party shall have any right, ownership, or interest in the Marks, except as expressly provided herein. Neither party shall remove, alter, or obscure any trademark, service mark, or other proprietary rights notices of the Customer's name and/or logo, as may be granted hereunder, or Service Provider's name and/or logo, as may be granted hereunder, on any Software, Equipment, or other promotional materials. Service Provider and Customer shall comply with Customer's reasonable guidelines as such are communicated to the Service Provider in writing and Service Provider shall use the Customer's Marks in accordance with such guidelines. Neither party grants to the other any title, interest or right in the Marks except as provided in this Section.

5.0 Confidentiality

5.0 Definition, "Confidential Information" and Privacy:

Includes all information marked pursuant to this Section and disclosed by either party, before or after the Quote Effective Date, in tangible form, which is clearly marked as "Confidential" or "Proprietary" or disclosed in oral or other form and is identified as Confidential or proprietary at the time of disclosure, and which is subsequently reduced to a writing or other tangible form, which shall be delivered to the Receiving Party within 30 days after such disclosure. Service Provider may only access or disclose Information about Customer's business or operations that is necessary to perform its obligations under the Quote or this Agreement, or as required by law, or as permitted by Customer's written instructions, in addition, neither party will disclose the existence of this Agreement or the fact that any of the Parties is a party to this Agreement, except as may be required by law, or as permitted by the other Party in writing. Service Provider may disclose Information to its employees, agents, and sub-contractors and other third parties, to the extent reasonably necessary to perform its obligations under the Quote, provided that such disclosure is made only to persons who are obligated to keep such information confidential. Information shall not be deemed Confidential Information if it was: (i) known to the Receiving Party prior to its receipt from the Disclosing Party, without any obligation of confidentiality; (ii) is already known by the receiving party at the time of disclosure; (iii) is disclosed to the Receiving Party by a third party who is not under a confidentiality obligation; or (iv) rightfully and lawfully obtained by the Receiving Party from a third party. Service Provider's software products and services (for purposes of providing or improving Service Provider's products and services, or for any other purpose permitted by law) may collect, use, and disclose quantitative data derived from Customer's use of Service Provider's products and services (including but not limited to analytics, statistical or aggregate information, usage data, and learnings thereof) provided that such information does not identify Customer or Customer Data. Information if made in response to a valid order of a court or authorized agency of government, provided that Service Provider shall, to the extent legally permitted, give Customer 30 days prior notice of such disclosure, and engage in other efforts to minimize the required disclosure. The parties shall cooperate fully in seeking such protective order and engaging in such other efforts.

5.4 Ownership of Confidential Information:

Nothing in these SaaS Terms will be construed to convey any title or ownership rights to the Software or other Confidential Information to Customer, nor to prevent Service Provider from performing services for others, or to grant any other right, title, or ownership interest to the Service Provider's Confidential Information. Neither party will reverse engineer, disassemble, or decompile any prototypes, software or other tangible objects which embody the other party's and that such party may lawfully obtain hereunder. Customer shall not use Service Provider's Confidential Information for any purpose other than as expressly permitted by these SaaS Terms. Each party shall take every reasonable precaution, but no less than those precautions used to protect its own Confidential Information of a similar nature, to prevent the disclosure, misappropriation, misuse, reproduction or distribution of the Confidential Information.

5.5 Non-Disclosure:

Each party agrees at all times to use all reasonable efforts, but in any case no less than the efforts that each party ordinarily uses to safeguard its own Confidential Information of a similar nature, to prevent the disclosure of Confidential Information to other parties. Each party agrees to restrict access to the Confidential Information to its employees and contractors who: (i) require access to the course of their assigned duties and responsibilities, and (ii) have agreed in writing to be bound by terms and conditions substantially similar to the terms of this Section.

5.6 Injunctive Relief:

Each party acknowledgs that any unauthorized disclosure or use of the Confidential Information would cause the other party irreparable injury and that such party will be entitled, by its addition to any other remedies available at law or equity, to preliminary and permanent injunctive relief in the event the other party breaches its obligations under this Section.

5.7 Suggestions/Improvements to Software:

Notwithstanding this Section, unless otherwise expressly agreed in writing, all suggestions, solutions, improvements, corrections, and other contributions provided by Customer regarding the Software or other Service Provider materials provided to Customer will be owned by Service Provider, and Customer hereby agrees to assign (and shall cause its Users to assign) to Service Provider all right, title, and interest in and to the foregoing, and Service Provider is free to use and exploit the foregoing without restriction, royalty, fee, obligation, or precedent, and Customer hereby waives all moral rights in the foregoing.

6. Warranty

6.1 No Malicious Code:

To the knowledge of Service Provider, the Application does not contain any malicious code, program, or other internal component (e.g., computer virus, computer worm, computer time bomb, or computer virus), which could erase, destroy, or in any other way harm or restrict Customer's use of the Application in accordance with the information accessed through or processed by the Application in any manner. The warranty will be considered void if Customer has modified the Application. Service Provider's sole liability, and Customer's sole and exclusive remedy, in the event of a breach of the foregoing warranty shall be limited to Service Provider's repair of the Application to remedy any noncontemplated under the provisions of these SaaS Terms, and (ii) provide reasonable assistance in identifying and recovering any noncontemplated.

6.2 Authorized Representative:

Customer and Service Provider warrant that each has the right to enter into these SaaS Terms and that these SaaS Terms are binding upon and enforceable against the party and its successors and permitted assigns. 7. Limited Warranty. Service Provider warrants that all services performed hereunder shall be performed in a workmanlike and professional manner.

7. Limitation of Liability

ANY AND ALL OF SUPPLIER'S SERVICES, CONFIDENTIAL INFORMATION AND ANY OTHER TECHNOLOGY OR INFORMATION PROVIDED BY SUPPLIER TO CUSTOMER AND PROVIDED TO CUSTOMER "AS IS" WITHOUT WARRANTY OF ANY KIND, EXCEPT AS OTHERWISE EXPRESSLY STATED IN SECTION 6 OF THESE SAAS TERMS. SUPPLIER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NONINFRINGEMENT. NEITHER SERVICE PROVIDER NOR ANY OF ITS SUBSIDIARIES, AFFILIATES, SUPPLIERS OR LICENSORS WILL BE LIABLE TO CUSTOMER FOR ANY INCIDENTAL, SPECIAL, INDIRECT, OR CONSEQUENTIAL DAMAGES (INCLUDING, LOSS, CUSTOMER ACKNOWLEDGES THAT THESE DAMAGES ARE EXCLUDED BY AGREEMENT AND WERE ANTICIPATED BY THE PARTIES AND CONSTITUTE A REASONABLE LIMITATION OF LIABILITY.

8. Modifications:

Notwithstanding anything to the contrary in this Section, any and all warranties under these SaaS Terms are void if Customer has made changes to the Software or has permitted any changes to be made other than by or with the express written approval of Service Provider.

7. Indemnification

7.1 Service Provider Indemnity:

Service Provider will defend at its expense any cause of action brought against Customer, to the extent that such cause of action is based on: (i) the infringement of any Intellectual Property Service Provider's Software in the United States patent, copyright, or trade secret of a third party. Service Provider will pay those costs and damages finally awarded against Customer in any such action that is attributable to such claim, provided that Service Provider's obligations are conditioned upon Customer's delivery to Service Provider. Customer may retain its own counsel at Customer's own expense.

7.2 No Liability:

Service Provider will have no liability for any claim of infringement based on: (i) Software which has been modified by Customer or any third party other than Service Provider where such modification would not have caused the infringement in such modification; (ii) Customer's use of the Software in conjunction with data or Software not furnished by Service Provider where such Software would not cause the infringement claim; or (iii) Customer's use of the Software outside the permitted scope of these SaaS Terms.

7.3 Remedies:

Should the Software become, or in Service Provider's opinion is likely to become, the subject of a claim of infringement, Service Provider will at its option: (i) procure for Customer the right to continue using the Software; (ii) replace or modify the Software so that it becomes non-infringing; or (iii) if neither of the foregoing options is commercially reasonable, terminate the excess and Use of the Software and refund to Customer a pro-rated portion of the fees paid for the Software for the period of Use remaining under the Quote. Customer's remedies for such infringement shall be limited to those rights granted to Customer for the terminated Software for the past twelve (12) months. THIS SECTION 7 STATES THE ENTIRE LIABILITY OF SERVICE PROVIDER WITH RESPECT TO ANY CLAIM OF INFRINGEMENT. 8. Customer Indemnity.

7.4 Customer Indemnity:

Customer agrees to defend, indemnify, and hold Service Provider and its officers, directors, employees, consultants, and agents harmless from and against any and all damages, costs, liabilities, expenses (including, without limitation, reasonable attorneys' fees), and settlement amounts ("Losses") incurred by Service Provider and its Affiliates arising out of or in connection with a third party claim: (i) Customer's breach of any term in Section 1.5 (Use Restrictions) or any other provision of this Agreement; (ii) Customer's Use of the Software in violation of applicable law; (iii) Customer's Use of the Software in an manner that infringes or misappropriates the intellectual property or other proprietary rights arising from data provided to Service Provider by Customer; (iv) Customer's Use of the Software in a manner that violates the rights of, or causes injury or damage to, any third party; (v) Customer's breach of any representation, warranty, or covenant in this Section; (vi) any claim by Customer or Authorized Users, of any terms, conditions, agreements or policies of any third party service provider. "Customer Losses" means all Losses arising out of or relating to a claim asserted against the Customer for which Service Provider is obligated to indemnify Service Provider or the Application.

7.5 Indemnification Procedures:

Each indemnifying party's obligations as set forth in this Section are subject to the other party: (i) giving the indemnifying party prompt notice of any such claim and the possible thereof; (ii) giving the indemnifying party sole control of the defense and settlement of any such claim; and (iii) providing full cooperation to such indemnifying party in connection therewith.

8. Limitation of Liability

8.1 Liability Cap:

EXCEPTING FOR ANY ANY INDEMNIFICATION CLAIM PERMITTED UNDER THIS AGREEMENT, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL EITHER PARTY BE LIABLE UNDER ANY THEORY OF LIABILITY, WHETHER IN AN EQUITABLE, LEGAL, OR COMMON LAW ACTION ARISING HEREUNDER FOR ANY CLAIM, LOSS, OR DAMAGE IN AN AMOUNT GREATER THAN THE LESSER OF (A) THE AMOUNT OF THE FEES PAID BY CUSTOMER TO SERVICE PROVIDER WITHIN IN THE WORKORDER, EXCEED THE AMOUNT OF THE FEES PAID BY CUSTOMER OVER A TWELVE MONTH PERIOD PRECEDING THE CLAIM FOR THE SERVICES WHICH GIVE RISE TO SUCH CLAIM(S).

8.2. Disclaimer of Damages:

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT WILL SERVICE PROVIDER BE LIABLE TO CUSTOMER FOR ANY INCIDENTAL, SPECIAL, INDIRECT, OR CONSEQUENTIAL DAMAGES (INCLUDING, LOSS OF BUSINESS, PROFITS, OR ANTICIPATED PROFITS), OR LOSS OF BUSINESS INTERRUPTION OR LOSS OF PROFITS, BUSINESS OPPORTUNITIES, OR GOODWILL.

9. Term and Termination

9.1. Subscription Term:

The term of these SaaS Terms will continue until the termination of the last Quote. Subject to the termination rights set forth in this Section, the term of a Quote ("Subscription Term") will be as specified in the applicable Quote. Service Provider's Service Level Agreement ("SLA") and Service Level Credits, unless Service Provider is entitled to Customer's intent not to renew at least only 30 days prior to the expiration of the then-current term.

9.2 Termination by Service Provider:

Service Provider and Customer shall: (a) Service Provider may be terminated by Service Provider: (i) if Customer fails to pay any amount due under the Quote within 30 days after Service Provider's **notice that such amount is past due and Service Provider shall be entitled to stop all services and suspend Customer's access to Service Provider's products without any liability or obligation to Customer or any third party** and Service Provider may continue to withhold such services and access to products without any liability or obligation to Customer or any third party for any such delay or interruption in such services.

9.3 Termination by Customer:

Subject to the terms of the Quote, Customer may terminate the Quote: (i) upon written notice to Service Provider if Service Provider fails to perform any material obligation required of it hereunder, and such failure is not cured within 30 days after receipt of written notice of such breach of Customer's notice or a longer period if Service Provider is actively diligently trying to cure.

9.4 Effect of Termination:

Upon termination of these SaaS Terms, Customer shall no longer access the Software and Customer shall not convert any security mechanisms created thereunder.

9.5 Other Remedies:

Termination of SaaS Terms will not limit either party from pursuing other remedies available to it, including injunctive relief, nor will such termination relieve Customer's obligation to pay all fees that have accrued or are otherwise owed by Customer under these SaaS Terms.

10. Customer Obligations

10.0 Customer agrees that its employees of Service Provider will be required to indicately sign any agreement in Service Provider's standard form, which shall be provided to Customer upon request. Customer's employees, Service Provider's employees and independent contractors.

10.0 Customer agrees to comply with all applicable laws, regulations, and ordinances relating to these SaaS Terms, including without limitation, those relating to intellectual property, data privacy, and export control. Customer shall ensure that each Web site for which the Application is engaged contains a: (i) linked to a privacy statement that discloses the information collection and use practices.

10.0 The Customer represents and warrants to Service Provider that Customer has the right to use the Software and Customer Data and Information and the rights and obligations set forth in these SaaS Terms. The Customer will be liable for any violation of these SaaS Terms by Customer, Authorized Users, and Customer's employees, agents, and contractors.

10.0 The Customer shall not: (a) reverse engineer, decompile, disassemble, or otherwise attempt to discover the source code of the Application; (b) keep it in a safe place, and to protect it against unauthorized access by third parties; (c) not permit any third party to access the Software or use the Software except as permitted herein or in any other written agreement between Service Provider and Customer.

10.0. Before entering its data and information, the Customer shall be obligated to check the same for viruses or other harmful components. Customer shall be liable for any damages incurred by Service Provider or any third party in connection with or as a result of the violation of such obligation herein.

10.0. Service Provider has the right (but not the obligation) to suspend access to the Application or remove any data or content transmitted to or stored on Service Provider's servers if Service Provider determines that the Application is being used in violation of these SaaS Terms or applicable law. 10.0 requested by a law enforcement or other governmental agency; (c) delayed or prevented by a force majeure event; or (d) deemed by Service Provider to pose a security or other threat to the functionality of Service Provider's systems or the systems of any other Customer. Such suspensions will be lifted when the circumstances giving rise to the suspension have been resolved. Service Provider may also suspend Customer's access during a suspension of access to the Software. Service Provider will use reasonable efforts to provide Customer with prior notice of any suspension of access to the Software, provided that Service Provider may suspend Customer's access without prior notice during a suspension of access to the Software if Service Provider's notice is necessary to protect Service Provider or its customers.

10.0 During term of these SaaS Terms and for a period of two (2) years following any termination or expiration of these SaaS Terms, Customer shall remain written records related to the use of the Software by Customer, as reasonably necessary to verify compliance with the terms of these SaaS Terms by Customer and its Authorized Users. Upon Service Provider's request, Customer shall provide Service Provider with such records. Service Provider shall have the right, at its own expense, to audit Customer's records and Customer's use of the Software, upon reasonable notice to Customer, by a third party, which will be subject to confidentiality obligations, to verify compliance ("**Verification**"). Verification will be performed in a manner that does not unreasonably interfere with Customer's business activities. If a Verification discloses that Customer has underpaid Service Provider for Software licenses, Customer shall promptly pay to Service Provider a well-audit quantitative relating to Customer's usage under the rights granted by Supplier to Customer in the amount of the underpayment, plus interest at the lesser of the rate of 1.5% per month or the maximum rate permitted by law from the date such payment was due. If the Verification shows that Customer has underpaid Service Provider under various usage of 5% or more in fees ("**Material Excess Usage**"), Material Excess Usage is found during Verification, Customer shall also reimburse Service Provider for the reasonable cost of the Verification. Customer's payment of such underpayment and reimbursement of such Verification costs shall not constitute a waiver of Service Provider's rights and to determine Customer's compliance with the terms of the Agreement in any other instance or with respect to any other matter. Customer shall promptly report to Service Provider in writing any unauthorized use of the Software, or any intellectual property rights or other means as permitted by law.

10.0 Customer shall not: (a) remove, obscure, or alter any proprietary rights are prohibited. The Parties hereby expressly agree that Service Provider may: (a) use and incorporate into the Software any suggestions, enhancement requests, recommendations, or other feedback communicated directly/orally or provided to the Service Provider by Customer or Authorized Users relating to the operation of the Software ("Feedback"); (b) use Feedback for any purpose in addition to or unrelated to providing and improving the Software; and (c) incorporate Feedback into the Software. Customer expressly permitting where such analytics shall be generated by a third party analytics provider for Service Provider, provided that such third party analytics provider shall not: (i) disclose Customer Data or Confidential Information to any third party; (ii) use Customer Data or Confidential Information for any purpose other than providing analytics services to Service Provider; (iii) sell, profit from, disclosure, publish, keep secret, or otherwise exploit any product related feedback, without compensating or crediting Customer for the intellectual property rights.

11. Miscellaneous

11. Assignment:

Customer may not assign these SaaS Terms or otherwise transfer any right created hereunder whether by operation of law, change of control, or in any other manner, without the prior written consent of Service Provider. Service Provider may assign these SaaS Terms, in whole or in part, without the consent of Customer. Any attempted assignment in violation of this Section shall be void. Subject to the foregoing, neither party will assign these SaaS Terms to a third party without the Customer's prior written consent.

12 Foreign Nationals:

Customer acknowledgment that Service Provider employs foreign nationals, and that these foreign national employees will, such as Service Provider's behalf, to perform its obligations and services hereunder.

13 Affiliates and Third Parties:

At the direction and sole discretion of Service Provider, Affiliates of Service Provider (the "Service Provider Affiliates") may perform certain services and/or Service Provider's obligations and rights under the Quote and the Master Agreement, including but not limited to, training, payment, technical support, product management and development, and Service Provider Affiliates may invoice Customer for such services. Service Provider Affiliates are acknowledgments Third Party Beneficiaries hereunder, and Service Provider Affiliates may enforce the provisions of the Master Agreement and the Quote as if they were Service Provider. Service Provider Affiliates shall have no obligations under the Quote and the Master Agreement will not give rise to any cause of action against the Service Provider Affiliates by Customer or any other third party. Service Provider may also provide certain services through third Party Service Providers, pursuant to Service Provider's standard form Third Party Service Provider Agreement. Service Provider will have the right to use third parties, including offshore entities who employ foreign nationals, to perform its obligations under the Quote and the Master Agreement (collectively, "Service Provider Third Party Service Providers"). Notwithstanding the foregoing, Service Provider will be responsible for the acts and omissions of these Said Terms, or references to Service Provider or its employees will be deemed to include such Service Provider Affiliates and Service Provider Third Party Service Providers, and Customer shall look only to Service Provider and not to Service Provider Affiliates or Service Provider Third Party Service Provider and Customer.

14 Technical Data:

Customer's access and rights to Service Provider any technical data as that term is defined in the International Traffic in Arms Regulations ("ITAR") and the Export Administration Regulations ("EAR") shall be governed by the ITAR and EAR. Service Provider has been reviewed and considered as that all technical data and other sensitive information relevant to Service Provider's business operations, if it has been removed and the information provided is only relevant to help Service Provider production.

15 Compliance with Laws:

Both parties agree to comply with all applicable laws, regulations, and ordinances relating to such party's performance under these SaaS Terms.

16 Survival:

The provisions of Sections 2, 3, 5, 6, 8, 9, 10, 11, 14 and 17 of these SaaS Terms will survive termination or expiration of these SaaS Terms for a period of two (2) years.

17 Notices:

Any notice required under these SaaS Terms shall be given in writing and will be deemed effective upon delivery to the party to whom addressed. All notices shall be sent to the applicable address specified on the Quote or to such other address as either party may specify in writing from time to time. Service Provider shall clearly define the reach Service Provider's contractual obligation that has been breached.

18 Force Majeure:

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Service Provider will not be liable to Customer for any delay or failure of Service Provider to perform its obligations hereunder if such delay or failure arises from any cause or causes beyond the reasonable control of Service Provider. Such causes will include, but are not limited to, acts of God, floods, fires, loss of electricity or other utilities, or delays by Customer in providing required resources or support or performing any other requirements hereunder.

11.9 Restricted Rights:

Use of the Software by or for the United States Government is conditioned upon the Government agreeing that the Software is subject to Restricted Rights as provided under the provisions set forth in FAR 52.227-19. Customer shall be responsible for assuring that this provision is included in all agreements with the United States Government and that the Software, when accessed by the Government, is correctly marked as required by applicable Government regulations governing such Restricted Rights as of such access.

11.10 Entire Agreement:

These SaaS Terms together with the documents referenced herein constitute the entire agreement between the parties regarding the subject matter hereof and supersedes all proposals and prior discussions and writings between the parties with respect to the subject matter contained herein. All terms respecting the subject matter of the SaaS Terms and contained in purchase orders, invoices, acknowledgments, shipping instructions, or other forms exchanged between the parties will be void and of no effect.

11.11 Modifications:

The parties agree that these SaaS Terms cannot be altered, amended or modified, except by a writing signed by an authorized representative of each party.

11.12 Non-solicitation:

During the term of these SaaS Terms and for a period of two (2) years thereafter, Customer agrees not to hire, solicit, nor attempt to solicit, the services of any employee or Subcontractor of Service Provider without the prior written consent of Service Provider. Customer further agrees not to hire, solicit, nor attempt to solicit, the services of any former employee or Subcontractor of Service Provider for a period of one (1) year from such former employee's or Subcontractor's last date of service with Service Provider. Violation of this provision will entitle Service Provider to liquidated damages against Customer equal to two hundred percent (200%) of the solicited person's gross annual compensation.

11.13 Headings:

Headings are for reference purposes only, have no substantive effect, and will not enter into the interpretation hereof.

11.14 No Waiver:

No failure or delay in enforcing any right or exercising any remedy will be deemed a waiver of any right or remedy.

11.15 Severability and Reformation:

Each provision of these SaaS Terms is a separately enforceable provision. If any provision of these SaaS Terms is determined to be or becomes unenforceable or illegal, such provision will be reformed to the minimum extent necessary in order for these SaaS Terms to remain in effect in accordance with its terms as modified by such reformation.

11.16 Independent Contractor:

Service Provider is an independent contractor and nothing in these SaaS Terms will be deemed to make Service Provider an agent, employee, partner, or joint venturer of Customer. Neither party will have authority to bind, commit, or otherwise obligate the other party in any manner whatsoever.

11.17 Interpretation:

The Parties acknowledge and agree that the Parties are sophisticated parties engaging in a fully negotiated commercial transaction with ample review of terms prior to execution. Any dispute term contained in this Agreement will thus not be interpreted against Service Provider and the Service Provider will not be accorded Drafter Status with respect to this Agreement or related terms.

11.18 Governing Law; Venue:

The laws of the State of California shall govern this Agreement and the relationship between the Parties. The United Nations Convention on Contracts for the International Sale of Goods (1980) and the Uniform Computer Information Transactions Act (UCITA) are hereby excluded in their entirety from application to these SaaS Terms. The parties agree that the federal and state courts located in County of Santa Clara, California, USA will have exclusive jurisdiction for any dispute arising under, out of, or relating to these SaaS Terms. Mediation will be held in San Francisco, California, USA.

11.19 Dispute Resolution:

Negotiations. Where there is a dispute, controversy, or claim arising under, out of, or relating to these SaaS Terms, the aggrieved party shall notify the other party in writing of the nature of such dispute with as much detail as possible about the alleged deficient performance of the other party. A representative from senior management of each of the parties shall meet in person or communicate by telephone within five (5) business days of the date of the written notification in order to reach an agreement about the nature of the alleged deficiency and the corrective action to be taken by the respective parties.

Mediation. Any dispute, controversy, or claim arising under, out of, or relating to these SaaS Terms and any subsequent amendments of these SaaS Terms, including, without limitation, its formation, validity, binding effect, interpretation, performance, breach, or termination, as well as non-contractual claims, and any claims with respect to the validity of this mediation agreement (hereinafter the "**Dispute**"), shall be submitted to mediation in accordance with the then- current WIPO Mediation Rules. The language to be used in the mediation will be English.

Opportunity to Cure. Notwithstanding anything contained hereunder, Customer agrees and acknowledges that no dispute resolution or litigation will be pursued by Customer for any breach of these SaaS Terms until and unless Service Provider has had an opportunity to cure any alleged breach. Customer agrees to provide Service Provider with a detailed description of any alleged failure and a description of the steps that Customer understands must be taken by Service Provider to resolve the failure. Service Provider shall have thirty (30) days from Service Provider's receipt of Customer's notice to complete the cure.

Injunctive Relief. The parties agree that it will not be inconsistent with their duty to mediate to seek injunctive or other interim relief from a competent court. The parties, in addition to all other available remedies, shall each have the right to initiate an action in any court of competent jurisdiction in order to request injunctive or other interim relief with respect to a violation of intellectual property rights or confidentiality obligations. The choice of venue does not prevent a party from seeking injunctive or any interim relief in any appropriate jurisdiction.

Piper
AI Assistant
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